Access request 2026-581: what the borough's file shows

Executive summary and analysis of the documents released October 9, 2026

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October 9, 2026

Summary

On September 11, 2026 I asked the borough of Côte-des-Neiges–Notre-Dame-de-Grâce for the records behind the engineering study it had commissioned on rue de Terrebonne: who asked for it, why, what it was told to examine, what it cost, and what it delivered. The borough answered on October 9 with 508 pages (file 2026-581). The study itself is withheld. What was released is enough to establish the following.

1. **The decision came before the study.** On June 10, 2026 the borough's engineering division wrote to the City's street-design division that the elected officials wished to revisit the 2024 layout "avec l'objectif de redonner la bande de stationnement qui avait été retranchée," that the borough's engineers had *already* issued a technical opinion on the two concepts the councillors had sketched, and that the councillors wanted "un avis officiel, neutre et externe." The mandate eventually given to EXP on August 20 is titled, in part, "évaluer la place du stationnement sur rue, dans le but d'en augmenter le nombre."
2. **The City's own cycling unit warned about safety.** The Service de l'urbanisme et de la mobilité returned an express analysis on June 17; the borough's own summary of it, written five days later, says the options "présentent plusieurs compromis importants sur le plan de la sécurité, du confort des usagers vulnérables et de la cohérence du réseau cyclable." That analysis is withheld. The fire department's opinion of July 13 is redacted in its entirety.
3. **The "study" is a six-week, $14,755 technical note with a council date fixed in advance.** Service request August 20; offer August 25; purchase order August 26; kick-off September 3; draft September 17; final due October 2; announcement October 6. Borough staff told the consultant on August 18 that "l'objectif de nos élus est de pouvoir agir sur vos conclusions pour un horizon début octobre" and on September 10 that the draft was needed by the 18th "pour respecter notre calendrier du Conseil d'arrondissement du 5 octobre."
4. **The winter measure is described as transitional.** The mandate's Volet 1, removal of cycling facilities in winter, is "mesure transitoire pour l'hiver 2026–2027"; Volet 2 is a permanent bidirectional lane on one side with a parking lane restored on the other. The winter conversion is the first step of a year-round reduction of cycling space that has not been announced.
5. **A storm-only option was within the mandate.** EXP's offer lists among the scenarios to compare "la fermeture en période de déneigement seulement." The councillor told the October 6 meeting that storm-only parking had been ruled out; the analysis on which that rests is in the withheld note.
6. **The figures cited at council are a one-day camera count from January 2025.** The "12" and "8" come from the borough's February 2025 count presentation: bicycles at the Cavendish and Grand intersections during the two three-hour peak periods of January 29, 2025, the lane's first winter, before the loop counter existed. The same file contains the loop counter's daily totals to August 31, 2026, which the borough also had and also gave the consultant. Those show 41 a day over December–March (46 on weekdays) and a second summer at about 700 a day.
7. **The withholding rests on a ground that expires with the decision.** The note and the City's analysis are withheld under section 39, which applies "until a decision is made on the recommendation." The councillor announced the decision on October 6 and promised changes by Christmas.

Either the decision has been made and the ground has lapsed, or it has not and the announcement was premature. A review may be sought from the Commission d'accès à l'information within 30 days, that is by **November 8, 2026**.

1 What was asked and what was received

The request (September 11, 2026; acknowledged September 14 as file 2026-581) had five parts: A, origin and purpose; B, procurement and contract; C, methodology and execution; D, deliverables and review; E, internal handling and communications. The response letter answers each item in turn and attaches eight files. The two substantive bundles are:

- **Bundle 01** (01 Doc_req 2026-581.pdf, 167 pages): the email chains, the service request, EXP's offer of services, the purchase order, the kick-off meeting form, the February 2025 count-analysis presentation and its 2025 update, the Kensington loop daily totals (July 26, 2025 to August 31, 2026) and the Miovision intersection count tables for 2024–2025.
- **Bundle 02** (02 DOC requis 2026-581.pdf, 341 pages): the public tender for the 2025–2027 framework agreements (59-25-ET-01), the contract-management by-law, the decision file and selection-committee results, and WSP's winning bid for contract 1. Nothing in it concerns Terrebonne specifically; it documents the vehicle under which EXP was retained.

The remaining attachments are the council resolution awarding the framework agreements (CA25 170126, June 9, 2025), the notice of recourse, and copies of the sections of the Act relied on (9, 23, 24, 37, 39, 53–59). The response letter is at Request 2026-581; the original request is at Terrebonne study access request. [Confirm file names once uploaded.]

Items with no documents. The borough found nothing for A2 (external funding), C3 (follow-up meetings), E2 (communication plans) and E3 (design or implementation documents dated before receipt of the final report). C3 is hard to square with the released emails, which schedule working meetings no. 1 and no. 2 on Teams and refer to the consultant's notes of them [01, p. 23–24, 167]; the kick-off form records that "on pourra produire des comptes rendus distincts pour les prochaines rencontres." Either those minutes were not produced or they were not searched for.

2 Timeline established by the record

Date	Event	Source
2022–2023	EXP traffic study for the protected lane (previous mandate); scenario retained: one-way with diverging direction at Cavendish, one parking lane removed.	[01, p. 8]
2024	Redesign built; 2.5 km one-way, unidirectional lanes both sides.	[01, p. 3]
Jul 2024 – Jun 2025	Borough Miovision counts at Cavendish, Grand, Walkley; Telraam at King Edward and Royal.	[01, p. 82–158]
Jan 29, 2025	Single-day Miovision counts at Cavendish and Grand: 18 and 12 bicycles on the Terrebonne axis over 12 hours; 10 and 8 in the two peak periods.	[01, p. 85, 155]
Feb 2025	"Suivi de projet – Analyse des comptages" presentation; updated later in 2025 with January and June counts and the -95/-96% figures.	[01, p. 27–73]
Jul 26, 2025	Kensington loop counter in service.	[01, p. 74]
Nov 2025	Municipal election.	—

Date	Event	Source
Jun 10, 2026	Division head (Trottier) to SUM: elected officials want to restore the parking lane; two cross-sections drawn (designated roadway; very narrow bidirectional lane); borough has already issued a technical opinion; councillors want an external one; meeting with the borough mayor set for June 18.	[01, p. 7–8]
Jun 17, 2026	SUM returns its express technical analysis (withheld).	[01, p. 6–7]
Jun 22, 2026	Borough asks SIM for an opinion; summarizes SUM's conclusion as "plusieurs compromis importants" on safety.	[01, p. 5–6]
Jul 13, 2026	SIM replies (body redacted).	[01, p. 5]
Aug 18, 2026	Soulière to EXP: the new borough mayor wants a technical note; speed is what matters to the councillors; aim is to act at a council meeting in early October.	[01, p. 21–22]
Aug 20, 2026	Service request 59-26-ET-01_002 to EXP.	[01, p. 3–4]
Aug 25, 2026	EXP offer: $14,755; final note October 2.	[01, p. 9–13]
Aug 26, 2026	Purchase order 1796945, $17,706 with contingency.	[01, p. 15–17]
Aug 28, 2026	Borough sends EXP the 2025 count presentation and the loop-counter table; EXP sends its first interim analysis (south side preferred for a bidirectional lane).	[01, p. 19]
Sep 3, 2026	Kick-off meeting (Teams).	[01, p. 26]
Sep 10, 2026	Borough: draft needed by September 18 "pour respecter notre calendrier du Conseil d'arrondissement du 5 octobre."	[01, p. 23]
Sep 11, 2026	This access request filed.	—
Sep 11 & 14, 2026	Working meetings no. 2 (parking and winter) and comments.	[01, p. 167]
Sep 17, 2026	Preliminary note delivered, watermarked "BROUILLON."	[01, p. 167]
Oct 2, 2026	Final note due. No transmittal for the final version appears in the release.	[01, p. 12, 26]
Oct 6, 2026	Council meeting; winter conversion announced.	—
Oct 8, 2026	Second access request (final note and slides) filed.	—
Oct 9, 2026	Response to this request.	—

3 Findings in detail

3.1 The objective was fixed before any analysis

The June 10 email from the head of the borough's technical studies division to the City's street-design division is the earliest document in the release and the most important [01, p. 7–8]:

> "Les élus de l'arrondissement souhaitent revoir l'aménagement cyclable de la rue Terrebonne réalisé en 2024, avec l'objectif de redonner la bande de stationnement qui avait été retranchée. … Les préoccupations exprimées concernent principalement la largeur des aménagements cyclables, jugée disproportionnée par rapport au volume de cyclistes observé. Selon les élus, il serait possible de réduire l'espace consacré aux cyclistes afin de rétablir la deuxième bande de stationnement retirée lors de la reconfiguration de 2024."

> "Vous comprendrez que nous avons déjà émis un avis technique quant à la faisabilité de ces 2 concepts, toutefois, les élus souhaitent obtenir un avis officiel, neutre et externe à l'arrondissement."

Three things follow. The objective, restoring the parking lane, is stated as the elected officials' goal, not as a question. The borough's own engineers had already given an opinion, and the request for an outside

one was made because the councillors wanted another; the sentence does not say what the internal opinion was, but the email's own description of the two concepts ("une voie de circulation très étroite (moins de 4 mètres) coincée entre deux bandes de stationnement"; "un aménagement bidirectionnel très étroit" at 2.4 m with a 0.3 m buffer) and its anticipation that the fire department "pourrait s'y opposer" leave little doubt. And the justification offered for the exercise is the one used in public since: the lane is too wide for the number of cyclists.

The internal "avis technique" was not covered by my request and has not been asked for. It should be.

3.2 The City's cycling unit and the fire department

The SUM's analysis of June 17 [01, p. 6–7] is withheld under sections 37 and 39. Its conclusion survives in the borough's own words, in the June 22 request to the fire department [01, p. 6]:

> "À la demande de l'arrondissement, le Service de l'urbanisme et de la mobilité a procédé à une analyse technique préliminaire des scénarios envisagés. Cette analyse conclut que les options étudiées présentent plusieurs compromis importants sur le plan de la sécurité, du confort des usagers vulnérables et de la cohérence du réseau cyclable par rapport à l'aménagement actuellement en place."

The SUM's cover note asks to be kept informed "des orientations qui seront retenues à la lumière de ces éléments" [01, p. 7]; the release contains no reply. The fire department's answer of July 13 [01, p. 5] is a single introductory sentence followed by a redaction covering the rest of the page. Whatever it says, the borough asked the question because it expected an objection to a sub-4-metre lane between two rows of parked cars.

The sequence matters: the City's expert unit flagged safety on June 17; the borough then retained an outside consultant on August 20 with a mandate whose stated purpose was to increase parking. A note written to that mandate is not an independent assessment of whether to remove the lane; it is a design exercise in how.

3.3 The mandate and what it asked for

The service request of August 20 [01, p. 3–4] is explicit about purpose and scope. The title: a technical note to evaluate a bidirectional lane on one side "et voir à évaluer la place du stationnement sur rue, dans le but d'en augmenter le nombre." Among the tasks:

> "Énumérer les mesures à mettre en oeuvre, en deux volets, pour le retrait des aménagements cyclables durant la saison hivernale. Volet 1 – existant : pistes cyclables unidirectionnelles bilatérales (mesure transitoire pour l'hiver 2026–2027). Volet 1 alternatif : maintien et entretien hivernal d'une des deux bandes cyclables, et retrait de l'autre. Volet 2 – faisabilité d'une piste cyclable bidirectionnelle unilatérale."

"Volet 1 alternatif" is the measure announced on October 6, word for word. It appears in the borough's instructions to the consultant six weeks before the consultant reported. And it is labelled transitional: the longer-term plan in the same document is Volet 2, a single bidirectional lane with a parking lane restored on the other side year-round. The council has not been told that the winter measure is the first stage of a permanent reconfiguration, but the mandate says so.

EXP's offer [01, p. 9–13] restates the scope and adds the winter scenarios it would compare:

> “… la fermeture complète de la piste et son remplacement par du stationnement en hiver; la fermeture en période de déneigement seulement; ou, dans le cas des bandes unidirectionnelles actuelles, la fermeture partielle avec une chaussée désignée et du stationnement des deux côtés de façon permanente ou seulement lors des périodes de déneigement durant la saison hivernale.”

So the storm-only arrangement the councillor dismissed at the meeting was one of the scenarios the consultant was paid to assess. Whether the note recommends against it, and on what grounds, is exactly what the withheld document would show.

Price: $14,755 in fees plus $2,951 contingency, $17,706 before tax [01, p. 16], at the hourly rates of the framework agreement. Deliverables: two interim emails, a draft note, a final note, and a closing meeting. No field work, no counts, no occupancy survey; the consultant was given the borough’s 2025 presentation and the counter table on August 28 and worked from those and from Google aerial imagery, Street View being out of date [01, p. 19].

3.4 A calendar set by the council date

The August 18 email that opens the file [01, p. 21–22]:

> “… la nouvelle mairesse souhaite que nous lui présentions une note technique concernant la faisabilité de réaliser une piste cyclable bidirectionnelle, unilatérale, sur la rue de Terrebonne et voir, en plus de cette faisabilité, dans quelle mesure cet aménagement peut augmenter le nombre de cases de stationnement sur rue. … sachez que l’important pour nos élus est que votre proposition puisse se faire très rapidement, ainsi que la réalisation de la note en soi. L’objectif de nos élus est de pouvoir agir sur vos conclusions pour un horizon début octobre, lors d’un conseil d’arrondissement.”

And on September 10 [01, p. 23]: “Mon gestionnaire m’a rappelé hier qu’il est très important que la note technique préliminaire nous soit acheminée au plus tard le 18 septembre prochain pour respecter notre calendrier du Conseil d’arrondissement du 5 octobre prochain.” The consultant’s own draft of September 17 carries a “BROUILLON” watermark because “le délai serré ne nous a pas permis de faire faire une relecture attentive” [01, p. 167]. The final note was due October 2, a Friday; the announcement was made the following Tuesday.

3.5 Where the numbers came from

The councillor said at the meeting that he was relying on “the official data provided to me by the services” and read from slides a figure of 12 trips at peak hour in January and a figure of 8. The slides are in the release [01, p. 51–73]: the count-analysis presentation of February 2025, updated during 2025. Its bicycle table (“MAJ 2025”) gives, for the two three-hour peak periods combined, 12 bicycles at Cavendish and 12 at Grand in all directions in January 2025, and 10 and 8 on the Terrebonne axis, against 347 and 425 in June 2025, labelled -95% and -96% [01, p. 61–62]. The underlying Miovision tables show the January figures are from one day, January 29, 2025 [01, p. 85, 155]; the full twelve-hour totals that day were 18 at Cavendish and 12 at Grand on the Terrebonne axis.

Three observations. First, these are single-day camera counts at two intersections in the lane’s first winter, taken before the continuous counter existed. Second, the borough had the continuous counter’s record when the decision was made: the same bundle contains daily totals from July 26, 2025 to August 31, 2026 [01, p. 74–81], and the borough sent that table to the consultant on August 28 [01, p. 19]. It shows 4,891 passages between December 1 and March 31 (41 a day; 46 on weekdays; 63 on weekdays over the November 16 to March 31 clearing season) and a second summer at about 700

a day. Third, the “700” the councillor cited is from the same presentation: Grand, June 18, 2025, all directions, twelve hours (673). The comparison he drew at the meeting set a twelve-hour all-direction summer count against a six-hour one-axis winter count from a different year.

3.6 What was withheld, and on what grounds

- **Section 39** (a study prepared in connection with a recommendation, “until a decision is made on the recommendation”): the EXP note in all versions, the SUM analysis, and the comments exchanged on deliverables.
- **Section 37** (recommendations or opinions less than ten years old, including a consultant’s): the same documents, plus the SIM opinion.
- **Section 9, second paragraph** (drafts and preliminary notes are not documents held by a public body): the interim deliverables and the preliminary note.
- **Sections 23–24** (third-party commercial information): portions of the tender documents and EXP’s offer; the hour-and-fee breakdown attached to the offer is not in the release.
- **Sections 53–59**: personal information, applied to names and contact details in emails; in practice staff names are left visible.

Section 39 is the ground that carries the weight, and it is time-limited by its own terms. The councillor announced the decision on October 6 and told the Gazette on October 7 that “one thing is certain: residents will see changes by Christmas 2026,” while also saying the change “still need[s] to go through several steps.” The borough cannot have it both ways: if the recommendation has been decided, section 39 no longer applies and the note must be released subject only to section 37, which is discretionary and does not cover factual content; if it has not been decided, the public announcement of a decided outcome was premature. Section 14 of the Act requires that factual content be severed and released where an exception covers only part of a document; the response does not do this for the note.

The section 9 ground is weak for the September 17 draft. It was a deliverable under contract, transmitted to the client for review, and the borough’s comments on it shaped the final version. “Brouillon” on the watermark does not make it a personal draft within the meaning of section 9, and the Commission has said so in comparable cases.

4 What this means

4.1 For the “data-driven” claim

The record shows a goal set by the elected officials in the spring, an internal technical opinion the councillors chose to go around, a central-city safety analysis they received in June and did not mention, a mandate written in August to deliver a parking increase by a council date already chosen, and a presentation of numbers that set aside the borough’s own continuous data in favour of a one-day count from the previous winter. The councillor’s standard, “a data-driven guy,” is one his own file does not meet. The point to make in public is not that the councillors are wrong to want parking; it is that the process they describe is not the process the documents show.

4.2 For the storm-only alternative

The borough paid for an assessment of “la fermeture en période de déneigement seulement” and then told the public that option was ruled out because residents could not be informed. The note presumably contains the actual reasoning. Asking for it is the natural follow-up to the councillor’s own statement that

all options were weighed.

4.3 For the longer game

“Mesure transitoire pour l’hiver 2026–2027” and Volet 2 together say that the winter conversion is a step toward a permanent single bidirectional lane with parking restored on the other side. That is a different decision from the one announced, with a different safety profile (the SUM’s “compromis importants” were about exactly these cross-sections), and it is the one APC-NDG should be organizing around. The winter vote is the precedent for it.

4.4 What to do

1. **Apply for review at the Commission d’accès à l’information by November 8** on the section 39, 37 and 9 refusals, citing the October 6 announcement, section 14 severance, and the contractual status of the September 17 draft. Fold in the second request (October 8) when its refusal arrives.
2. **Request the borough’s own “avis technique”** referred to on June 10, and the two cross-section drawings sent to the SUM, in a short new request.
3. **Request the SUM analysis from the City directly**, as a document of the central city, in a parallel request to the Ville de Montréal’s access office; section 39 lapses for it too once the borough decides.
4. **For November 2**, two questions follow from the file: (a) the borough has said the decision is made and that it is not; which is it, and if made, will the note be released now; (b) the borough’s own mandate describes the winter measure as transitional toward a permanent bidirectional lane; is that the plan, and when will residents be told.
5. **For the Gazette**, the June 10 email and the September 10 deadline email are the story: the goal, the internal opinion set aside, the City’s safety warning, and the council date fixed before the consultant started. Offer the reporter the documents, not the characterization.
6. **For the APC website**, publish the response and the two bundles with a short index, so that anyone can check the quotations above against the pages cited.

4.5 Cautions

The SUM’s conclusion is known only as the borough summarized it; the SIM’s opinion is unknown; the content of EXP’s note is unknown, and it may well recommend against the narrower options and for the winter measure as the least bad. “Disproportionnée” is staff’s report of the councillors’ view, not a finding. None of the quotations above should be stretched past what they say. They establish the sequence and the purpose; they do not establish what the consultant concluded, which is the reason to get the note.

5 Document index

Page numbers refer to the PDF page of each released bundle.

Document	Content	Location
Response letter	Item-by-item answers; grounds for refusal; notice of recourse.	Request 2026-581, 8 pp.
Bundle 01		01 Doc_req, 167 pp.
SIM / SUM chain	Jun 10 request to SUM; Jun 12, 17 replies; Jun 22 request to SIM; Jul 13 SIM reply (redacted).	pp. 2, 5–8

Document	Content	Location
Service request	Aug 20, 2026, mandate 59-26-ET-01_002.	pp. 3–4
EXP offer	Aug 25, 2026; scope, scenarios, schedule, $14,755.	pp. 9–13
Purchase order	Aug 26, 2026, no. 1796945, $17,706.	pp. 15–17
EXP email chain	Aug 18–28: mandate, work plan, inputs, first interim analysis.	pp. 19–22
Kick-off	Sep 3 meeting form, deliverables and dates; Sep 10 emails on the Oct 5 council deadline.	pp. 23–26
Count presentation	“Suivi de projet – Analyse des comptages,” Feb 2025, and “MAJ 2025” update.	pp. 27–49; 51–73
Loop counter	Kensington daily totals, bicycles and motor vehicles, Jul 26, 2025 – Aug 31, 2026.	pp. 74–81
Miovision tables	Intersection counts by 15-minute period and class: Grand, Cavendish, Walkley, Royal; Jul 2024 – Sep 2025; Jan 29, 2025 at pp. 82–88 and 152–158.	pp. 82–164
Draft delivered	Sep 17, 2026 transmittal of the preliminary note.	p. 167
Bundle 02	Framework-agreement tender 59-25-ET-01, by-law, decision file (pp. 169–177), evaluation grid, WSP bid.	02 DOC requis, 341 pp.
Resolution	CA25 170126, Jun 9, 2025: framework agreements to WSP ($1.60M) and EXP ($1.70M).	03 Résolution, 2 pp.
Act extracts	ss. 9, 23–24, 37, 39, 53–59; notice of recourse.	5 files
Derived	Kensington daily totals parsed to CSV from pp. 74–81.	CSV